

Smt. Geeta Alias Sharanamma W/O ... vs Shri. Shivakumar S/O Basayya Maski on 3 August, 2023

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NC: 2023:KHC-D:8254
CP No. 100031 of 20

IN THE HIGH COURT OF KARNATAKA

DHARWAD BENCH

DATED THIS THE 3RD DAY OF AUGUST, 2023

BEFORE

THE HON'BLE MR JUSTICE C.M. POONACHA
CIVIL PETITION NO. 100031 OF 2022

BETWEEN:

SMT. GEETA @ SHARANAMMA W/O. SHIVAKUMAR MASKI,
AGE. 32 YEARS, OCC. COOLI,
R/O. VANAGERI TQ. YALABURGA,
DIST. KOPPAL,
PRESENTLY AT NAVALAHALLI,
TQ. KUSTAGI, DIST. KOPPAL-584121.

...PETIT

(BY SRI. KAMALAKAR M.S., ADV. FOR SRI. ROHIT S. PATIL, ADV

Digitally signed AND:
by
SHIVAKUMAR
SHIVAKUMAR HIREMATH
HIREMATH

Date:

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SHRI. SHIVAKUMAR S/O. BASAYYA MASKI,
AGE. 37 YEARS, OCC. PRIVATE SERVICE,
R/O. VANAGERI, TQ. YALABURGA,
DIST. KOPPAL,
PRESENTLY AT NO. 91, VINNI COLONY,
1ST CROSS, MAGADI ROAD,
BENGALURU-560023.

...RESPON

(BY SRI. SIDDANAGOUDA B. KULKARNI, ADVOCATE)

THIS CIVIL PETITION UNDER SECTION 24 OF CPC, PRAYING
THAT THE MATRIMONIAL CASE NO.5484/2021 PENDING ON THE

FILE OF VI ADDITIONAL PRINCIPAL JUDGE FAMILY COURT, BENGALURU BE TRANSFERED TO SENIOR CIVIL JUDGE, KUSHTAGI FOR DISPOSAL IN ACCORDANCE WITH LAW, IN THE ENDS OF JUSTICE.

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THIS CIVIL PETITION, COMING ON FOR ADMISSION, THIS DAY, THE COURT MADE THE FOLLOWING:

ORDER

The present petition is filed seeking transfer of M.C.No.5484/2021 initiated by the respondent-husband pending on the file of 6th Addl. Prl. Judge, Family Court, Bengaluru.

2. It is the case of the petitioner that the parties were married on 05.11.2009 and they have a child by name Darshan from the said wedlock. It is further the case of the petitioner that due to various reasons, there arose various disputes in the matrimonial relationship and the petitioner is currently living with her parents along with her son. Since the husband did not provide any amount for maintenance, petitioner has initiated proceedings under Section 125 of Code of Criminal Procedure, 1973 in CrI.Misc.469/2017 in the Court of Prl. Civil Judge and JMFC, Kushtagi wherein vide order dated 29.01.2018, the respondent has been directed to pay a NC: 2023:KHC-D:8254 maintenance of Rs.1,000/- each to the petitioner and their minor child. It is the further case of the petitioner that the respondent has initiated the proceedings under Section 13(1)(ia)(ib) of Hindu Marriage Act, 1955 in M.C.No.5484/2021 in the Court of the Principal Family Judge at Bengaluru. It is the case of the petitioner that she is residing along with her parents and she has no independent source of income and that it will cause extreme hardship to contest the legal proceedings initiated by the husband before the Family Court at Bengaluru. Hence, this petition is filed seeking transfer of M.C.No.5484/2021 in the Court of the Principal Family Judge at Bengaluru to the Court of the Senior Civil Judge, Kushtagi.

3. Learned counsel for respondent vehemently objects to the above petition.

4. I have heard both the learned counsel and perused the material on record.

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5. The marital relationship between the parties is not disputed. It is further not in dispute that they have a child who is aged 12 years and that the said child is under the care and custody of the petitioner. It is also forthcoming that the respondent is gainfully employed and there will be no difficulty for the respondent to prosecute the proceedings initiated by him before the Court at Kushtagi.

6. It is a settled proportion of law that the convenience of the wife will have to be considered while deciding the cases of transfer of matrimonial proceedings.

7. In view of the above mentioned, I pass the following:

ORDER

(i) The petition is allowed.

(ii) M.C.No.5484/2021 pending on the file of 6th Addl. Prl. Judge, Family Court, Bengaluru shall stand transferred to the NC: 2023:KHC-D:8254 Court of the learned Senior Civil Judge, Kushtagi.

(iii) Both the parties shall appear in the transferee Court on 31.08.2023, without the requirement of any fresh notice being issued in this regard.

(iv) The transferee Court, upon transfer, shall proceed further in accordance with law.

(v) All contentions of the parties are left open.

(Sd/-) JUDGE NAA